Bow Valley College

Course Outline

JUST2205

The History of the Canadian Justice System and Indigenous Peoples
Fall 2020 - Spring 2022

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JUST2205 The History of the Canadian Justice System and Indigenous Peoples

COURSE DESCRIPTION

The focus in this course is on the Canadian legal system and its relationship to current Aboriginal populations. This course examines the intergenerational effects of the residential schools and how colonization impacts Aboriginal peoples today. Learners will also analyze the intention behind governmental treaties as well as the effect of legislation like Bill C31 (Indian Act) and the effects of national publications like the Royal Commission Report on Aboriginal Peoples or the recommendations of the Truth and Reconciliation Commission of Canada.

REQUISITES	None
EQUIVALENTS	None
CREDITS	3
HOURS	45
ELIGIBLE FOR PLAR	No

COURSE LEARNING OUTCOMES

Bow Valley College is committed to ensuring our graduates can demonstrate their abilities in key areas that will make them effective citizens and encourage their development as lifelong learners. In addition to the discipline-specific skills that learners acquire in their programs, the College has identified ten learning outcomes.

College-Wide Outcomes:

1. Communication
2. Thinking Skills
3. Numeracy and Financial Literacy
4. Working with Others
5. Digital Literacy
6. Positive Attitudes and Behaviours
7. Continuous Learning
8. Health and Wellness Awareness
9. Citizenship and Intercultural Competence
10. Environmental Sustainability

#	COURSE LEARNING OUTCOME(S)	COLLEGE WIDE OUTCOMES SUPPORTED
1	Describe the historical context that frames the relationship between Indigenous peoples and the law and policies of the Canadian justice system.	1, 2, 4, 6, 7, 9
2	Examine the process of reconciliation by reviewing the intent of the Royal Commission on Aboriginal Peoples and the Truth and Reconciliation Commission.	1, 2, 4, 6, 7, 9
3	Identify the historical causes of the over-representation of Indigenous peoples in the Canadian justice system and, in particular, the circumstances of Indigenous women and children.	1, 2, 4, 6, 7, 9
4	Analyze the intention and effectiveness of the conciliatory actions taken by government, courts, and Indigenous peoples with respect to the Canadian justice system.	1, 2, 4, 6, 7, 9

COURSE MODULES AND SCHEDULE

**Course schedule subject to change, depending on delivery mode and term of study. For exact dates, please consult the Course Offering Information in Brightspace.*

WEEK/HOURS	MODULES
Week 1	Introduction to Course Expectations, Policies, APA Guidelines
Week 2	Module 1: Aboriginal Peoples and the Canadian Justice System., Lesson 1: Prison Statistics
Week 3	Lesson 2: Gladue Reports and Impact
Week 4	Lesson 3: Richard Wolfe
Week 5	Module 2: The Royal Proclamation, Canadian Treaties, Laws and the Court System, Lesson 1: Doctrine of Discovery
Week 6	Lesson 2: Early Diplomacy and the Royal Proclamation of 1763 Historical Treaties in Canada
Week 7	Lesson 3: Aboriginal Rights and the Canadian Court System
Week 8	Module 3: Residential School Impact/Truth and Reconciliation Commission Recommendations, Lesson 1: Introduction to Residential Schools
Week 9	Lesson 2: Residual Effect of Residential Schools
Week 10	Lesson 3: Truth and Reconciliation Commission
Week 11	READING WEEK
Week 12	Module 4: United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), Lesson 1: Introduction to the UNDRIP
Week 13	Lesson 2: Justice and the UNDRIP
Week 14	Presentations
Week 15	Conclusion of the Course

ASSESSMENT

COURSE LEARNING OUTCOME(S)	ASSESSMENT	WEIGHT
1, 2, 3, 4	Oral assignment (s)	20%
1, 2, 3, 4	Writing assignment (s)	30%
1, 2	Learning assignment (s)	15%
1, 2, 3	Course Project	35%

Important: For details on each assignment and exam, please see the Course Offering Information.

PERFORMANCE STANDARDS

A minimum grade of D is required to pass this course. However, a program may require a higher grade in

this course to progress in the program or to meet specific program completion requirements.

Please consult with the program area or contact the program chair for further details. A minimum Grade Point Average of 2.0 is required for graduation.

GRADING SCHEME

Grade	Percentage	Grade Point	Description
A+	95-100	4.0	Exceptional: superior knowledge of subject matter
A	90-94	4.0	Excellent: outstanding knowledge of subject matter
A-	85-89	3.67	
B+	80-84	3.33	
B	75-79	3.0	Very Good: knowledge of subject matter generally mastered
B-	70-74	2.67	
C+	67-69	2.33	
C	64-66	2.0	Satisfactory/Acceptable: knowledge of subject matter adequately mastered
C-	60-63	1.67	
D+	57-59	1.33	
D	50-56	1.0	Minimal Pass
F	Less than 50	0.0	Fail: an unsatisfactory performance

REQUIRED LEARNING RESOURCES

Monchalin, L. The Colonial Problem: An Indigenous Perspective on Crime and Injustice in Canada. University of Toronto Press

Additional learning resources may be found in the Course Offering Information or in Brightspace.

ADDITIONAL INFORMATION

Additional information may be found in the Course Offering Information or in Brightspace.

ACADEMIC ACCOMMODATIONS

Learners with a disability (learning, physical, and/or mental health) may qualify for academic and exam accommodations. For more information, or to apply for accommodations, learners should make an appointment with Accessibility Services in the Learner Success Services (LSS) Department. Accessibility Services can also assist learners who may be struggling with learning but do not have a formal diagnosis. To make an appointment visit LSS on the first floor of the south campus or call 403-410-1440. It is the learner's responsibility to contact Accessibility Services and request academic accommodations. For more information, please visit our website at http://www.bowvalleycollege.ca/accessibility.

INSTITUTIONAL POLICIES

Bow Valley College is committed to the highest standards of academic integrity and honesty. Learners are urged to become familiar with and uphold the following policies: Academic Honesty (500-1-7), Learner Code of Conduct, Procedures and Guidelines (500-1-1), Learner Appeals (500-1-12), Attendance (500-1-10), Grading (500-1-6), Academic Continuance and Graduation (500-1-5), and Electronic Communications (300-2-13). Audio or video recording of lectures, labs, seminars, or any other teaching and learning environment by learners is allowed only with consent of the instructor as part of an approved accommodation plan. Recorded material is to be used solely for personal study and is not being used or distributed without prior written consent from the instructor.

Turnitin:

Students may be required to submit their course work to Turnitin, a third-party service provider engaged by BVC. Turnitin identifies plagiarism by checking databases of electronic books and articles, archived webpages, and previously submitted student papers. Students acknowledge that any course work or essays submitted to Turnitin will be included as source documents in the Turnitin.com reference database, where it will be used solely to detect plagiarism. The terms that apply to a student's use of Turnitin are described on Turnitin.com.

Online Exam Proctoring:

Examinations for this course may require proctoring through an online proctoring service. Online proctoring enables online exam taking within a controlled and monitored environment, thereby enhancing academic integrity. Online proctoring may occur through a variety of methods, including but not limited to:

a. live online proctoring where a remote invigilator authenticates identity and observes completion of an exam using specialized software and recordings;
b. automated proctoring where the exam session is recorded and AI (artificial intelligence) analyzed;
c. browser lockdown that limits access to other applications, websites, copying, printing, screen capture and other functions; or
d. a combination of both live/automated proctoring and browser lockdown.

Course instructors will review recordings, analyses, and data obtained through online proctoring for academic integrity infractions. It is the student's responsibility to meet the technical, software, location, and identity verification requirements necessary to enable online proctoring.

Further details of these policies are available in the Academic Calendar and on the Bow Valley College website, bowvalleycollege.ca.

Learners are encouraged to keep a copy of this course outline for future reference.

Collection of Personal Information:

This course, including your image and voice, may be recorded and made available to you and other students taking the course section. By attending the class(es) online or in person, you consent to the collection of your personal information. If you do not wish to be recorded, please contact your instructor before starting the course/class to discuss alternative arrangements.

You may use the recordings only for educational purposes and you must not copy, share, or use the recordings for any other purpose without the instructor's express permission.

Your personal information is collected in accordance with section 33(c) of the Freedom of Information and Protection of Privacy Act (Alberta) to deliver academic programming, support learner flexibility, promote universal design for learning principles, and for purposes consistent with the course activities and outcomes. If you have any questions about the collection, disclosure, use, or protection of this information, please contact the College's Access and Privacy Officer at foip@bowvalleycollege.ca.